

enlarge publication is to the Master.

tion, are the 181st Order of 1846, and the following Orders, *ante* page 42. The application is to the Master. The application must be made before the two months expire, or it would seem that the Master has not jurisdiction, for then publication has passed, and, if evidence is required, a special application must be made to the Court on motion, founded on special circumstances.

1850.
LXII.
Deposition in the first person.

By LXII. New Order all depositions are to be taken down in the first person. This was already the rule. If the deposition were otherwise, they could be suppressed, or their reading objected to at the hearing.

The following Order lays down some rules for the guidance of the Examiners in the country.

LXIII.
Examination of witnesses in the country.

If the examination of witnesses cannot be completed in one day, and the circumstances of the case permit, the examiner is to proceed *de die in diem* during six hours of each day, between the hours of eight in the morning and six in the afternoon, until the witnesses for all parties are fully examined. Nevertheless the examiner may, if in his opinion the circumstances of the case require an adjournment, adjourn the proceedings from time to time, and from place to place, in such manner as he thinks proper; but he is in all cases to enter on the depositions any adjournment, and, where such adjournment is from place to place or otherwise than *de die in diem*, the cause or reason of such adjournment.

Publication argued, as

Whereas entered for delay and forth cause for arguement returnable to be heard which writ shall have one month sary parties returnable. down, it shall causes for day for which thereafter disposed of

The cause he neglects tion has passed he desires to be heard

If after down the expiration of request, in of prosecution, and